

## 25NNCV02201 25NNCV02201

County: los-angeles

Division: Civil Law and Motion

Department: X

Hearing date: 2026-08-03

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#20 - LOS ANGELES COLLISION CONSULTING SERVICES, INC. vs BMW OF NORTH AMERICA, LLC, et al.

Defendant BMW of North America, LLC's motion to compel plaintiff's deposition is GRANTED.

Plaintiff Los Angeles Collision Consulting Services, Inc. shall appear for deposition on a date to be agreed upon by counsel, or, absent agreement, on a date properly noticed by defendant in compliance with the Code of Civil Procedure, no later than September 30, 2026.

Defendant's request for monetary sanctions is DENIED.

Plaintiff's written objection identified scheduling unavailability, not a defect in the deposition notice itself. That objection did not justify refusing to appear indefinitely. Plaintiff is a party, its deposition is a basic and proper discovery device, and the pleadings place the condition, repair history, and claimed damages relating to the subject vehicle directly at issue. The court is not persuaded that the motion is moot. Although plaintiff now agrees to appear by September 30, 2026, no deposition date has yet been fixed.

As to the request for sanctions, the court finds other circumstances making sanctions unjust. BMW has shown repeated efforts to obtain a deposition date, but plaintiff has produced evidence that at least the April 13 and April 23 communications were directed to attorneys who were no longer handling the matter, and plaintiff has since agreed to appear by a date certain.

Under these circumstances, an order compelling the deposition is appropriate, but a sanctions award is not.

Moving Party is to give notice.